

22STCV01760 22STCV01760

County: los-angeles

Division: Civil Law and Motion

Department: 517

Hearing date: 2026-08-31

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Pending before the Court is the motion of Plaintiffs and Cross-Defendants Bradley and Maggie Bell (the "Bells") for an order compelling Defendants and Cross-Complainants Steve Donovan and Catherine Stroud-Donovan ("the Donovans") to provide, without objection, responses to requests for production of documents ("RFPs") that the Bells propounded on the Donovans and to produce the documents that were requested. The Court is granting the Bells' motion.

The Bells served the RFPs on the Donovans on March 26, 2026. The Bells gave the Donovans multiple extensions of the deadline to respond to the RFPs and produce the documents. The last extension pushed the deadline to July 15, 2026. The Donovans did not provide responses to the RFPs and produce the documents by that date.

The Bells filed their motion on July 23, 2026. In their August 18, 2026 opposition to the motion, the Donovans did not deny that they needed to respond to the RFPs. They explained that their failure to respond to the RFPs and produce documents was due to their focus on settling this action, even after the case did not settle at a mediation that was held in late May 2026. The Donovans also stated in their opposition that they would respond to the RFPs and produce the requested documents well in advance of the August 31, 2026 hearing date on the Bells' motion.

It is salutary, of course, that the Donovans have been trying to settle the case. But that does not excuse their failure to respond to the RFPs and produce the requested documents even after the Bells gave them multiple extensions. Further, at least as of the date the Bells filed their reply brief in support of the motion, August 24, 2026, the Donovans still had not responded to the RFPs and produced the requested documents. The Donovans failure to respond to the RFPs and produce the requested documents by the final deadline of July 15, 2026 that the Bells gave them means that the Donovans have waived any objections that they might have had to the RFPs. The Court directs the Donovans to provide to the Bells within 14 days of this order objection-free responses to the RFPs and to produce to the Bells the requested documents.

The Court also is granting the request in the Bells' motion for an order imposing monetary sanctions against the Donovans in the form of attorney's fees and costs that the Bells incurred in connection with the motion. In the Court's view, there is no substantial justification for the Donovans' failure to respond to the RFPs and produce the requested documents by the July 15, 2026 deadline that would overcome the Bells' request for monetary sanctions against the Donovans. And it would not be manifestly unjust to the Donovans to impose sanctions against them.

The Court is, however, reducing the amount of the sanctions that the Bells sought in their motion. The Bells sought \$2,375. This figure reflected four hours of work by the Bells' counsel Kimia Sehati on the opening papers in support of the motion; four hours of anticipated work by Ms. Sehati in reviewing the Donovans' opposition to the motion and preparing a reply to the opposition; and 1.5 hours for Ms. Sehati's attendance at the hearing on the motion – all at Ms. Sehati's hourly billing rate of \$250. Because the Donovans did not, by any stretch, file a full-blown opposition to the motion and the reply brief was correspondingly short as a result, the Court is reducing the amount of sanctions attributable to Ms. Sehati's review of the opposition brief and preparation of the reply brief by 2.5 hours, from 4 hours to 1.5 hours, which comes out to \$625. The Court also is reducing the amount of sanctions attributable to Ms. Sehati's attendance at the hearing by 1 hour, from 1.5 hours to .5 hours. All told, the Court is awarding monetary sanctions to the Bells for six hours of Ms. Sehati's work in connection with the motion at her hourly billing rate of \$250,

which adds up to \$1,500. The Court also is
awarding to the Bells costs of \$60 reflecting
the filing fee they incurred for the motion
The total amount of the monetary sanctions the Court is awarding is thus
\$1,560. The Donovans must pay that
amount to the Bells' counsel within 30 days of this order.